

Peer-to-Peer Vehicle Rental Agreement - Universal Master Template

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IMPORTANT LEGAL DISCLAIMER

This document is a comprehensive template designed to be adaptable to the laws of different U.S. states. It incorporates consumer protection recommendations and industry best practices. **THIS IS NOT LEGAL ADVICE.** Laws governing peer-to-peer car sharing vary significantly from state to state. It is your sole responsibility to ensure this contract complies with all applicable federal, state, and local laws. **Consult a licensed attorney in your state** to review and customize this document before any use.

1. PARTIES TO THE AGREEMENT

VEHICLE OWNER (hereinafter "Owner")

- Full Name: _____
- Address: _____
- City: _____ **State:** _____ **ZIP Code:** _____
- Phone: _____ **Email:** _____
- Driver's License #: _____ **State:** _____

VEHICLE RENTER (hereinafter "Renter")

- Full Name: _____
- Address: _____
- City: _____ **State:** _____ **ZIP Code:** _____
- Phone: _____ **Email:** _____
- Driver's License #: _____ **State:** _____
- Date of Birth: ____/____/____

EMERGENCY CONTACT (for Renter)

• **Name:** _____ ****Relationship:**** _____ ****Phone:**** _____

2. VEHICLE DESCRIPTION

• **Year:** _____ ****Make:**** _____ ****Model:**** _____

• **Color:** _____ ****VIN:**** _____

• **License Plate:** _____ ****State:**** _____

• **Odometer at Pickup:** _____ miles

• **Fuel Level at Pickup:** ☐ Full ☐ 3/4 ☐ 1/2 ☐ 1/4

• **Required Fuel Type:** _____

Pre-Existing Damage (if any):

☐ Photos taken and attached

3. MANDATORY CONSUMER PROTECTION DISCLOSURES

Renter and Owner acknowledge having read and understood the following BEFORE signing this agreement:

1. Personal Insurance INSUFFICIENT: Your personal auto insurance policy **LIKELY DOES NOT COVER** this vehicle during the rental period. Coverage is provided **ONLY** by the insurance specified in Section 6 of this agreement.

2. Time-Limited Coverage: Insurance provided under this agreement is active only during the "Rental Period" as defined. Any use outside this period is not covered.

3. Financial Responsibility: Renter is financially responsible for all damages, fees, fines, and applicable deductibles during the rental period, in accordance with the terms of this agreement.

4. Right to Indemnification: The car-sharing program (if applicable) or the Owner may have the right to seek indemnification from Renter in case of breach of the terms of this agreement.

5. Financed Vehicle (Warning to Owner): If your vehicle is financed (loan or lease), renting it may constitute a violation of your contract with the financing institution. Check your loan/lease agreement.

6. Emergency Contact: In case of accident, breakdown, or any other issue, immediately contact the Owner at: ****** _____ ******

7. Insurance May Not Cover Shared Vehicle: Owner's personal motor vehicle insurance policy may not provide coverage for this shared vehicle during the rental period.

8. Driver's License Verification: Owner has verified that Renter holds a valid driver's license authorizing operation of vehicles of this class.

4. RENTAL TERMS

- **Start Date & Time:** ____/____/____ at ____ AM/PM
- **End Date & Time:** ____/____/____ at ____ AM/PM
- **Total Duration:** ____ days
- **Pickup Location:** _____
- **Return Location:** _____

Mileage Policy:

- ☒ Unlimited mileage included.
- ☐ Limited to ____ miles per day. Cost per additional mile: \$_____

5. PRICING AND PAYMENT

- **Daily Rate:** \$_____ × _____ days = \$_____
- **Additional Fees (if applicable):** _____ \$_____
- **Subtotal:** \$_____
- **Taxes (if applicable):** \$_____
- **TOTAL RENTAL COST:** \$_____

SECURITY DEPOSIT:

- **Amount:** \$_____
- Security deposit will be refunded within ____ days after vehicle return, minus any deductions for damages, cleaning fees, excess mileage, or other charges specified in this agreement.

Payment Method: ☒ Cash ☐ Credit Card ☐ Debit Card ☐ Other: _____

6. MANDATORY INSURANCE COVERAGE

VALID INSURANCE COVERAGE IS MANDATORY. "NO INSURANCE" OPTION IS ILLEGAL IN MOST STATES.

Source of Primary Insurance Coverage for Rental Period:

- ☒ **Insurance Provided by P2P Platform (e.g., Turo, Getaround)**
- **Platform Name:** _____ ****Protection Plan:**** _____
- ☒ **Owner's Commercial Insurance**
- **Company:** _____ ****Policy #:**** _____
- ☒ **Renter's Personal Insurance (verification required)**
- **Company:** _____ ****Policy #:**** _____
- **Renter attests that their policy explicitly covers peer-to-peer vehicle rentals.**

Coverage Limits (must meet or exceed state minimum requirements):

- **Bodily Injury/Property Damage Liability:** \$_____
- **Collision Deductible:** \$_____ ****Comprehensive Deductible:**** \$_____
- **Personal Injury Protection (if required by state):** \$_____
- **Uninsured/Underinsured Motorist (if required by state):** \$_____

Renter's Liability: Renter is responsible for all costs up to the deductible amount in case of damage, and for all costs if insurance is voided due to breach of this agreement.

Insurance Policy Requirements: The insurance policy covering this rental:

- ☒ Recognizes that the vehicle is made available and used through a peer-to-peer car sharing arrangement; OR
- ☒ Does not exclude use of the vehicle by Renter under this peer-to-peer arrangement.

7. SAFETY RECALL VERIFICATION (MANDATORY)

Owner declares and warrants that:

- ☒ To Owner's knowledge, there are no unrepaired safety recalls issued by the manufacturer for this vehicle.
- Owner agrees not to make the vehicle available if Owner becomes aware of an unrepaired safety recall.

- If a recall notice is received during the rental period, Owner agrees to immediately notify Renter and any applicable P2P program to take necessary action.

Renter Acknowledgment:

- ☐ Renter has been informed that Owner has verified no unrepaired safety recalls exist for this vehicle as of the start of this rental.

8. AUTHORIZED DRIVERS**Primary Driver:**

• **Name:** _____ ****License #:**** _____ ****State:**** _____
****DOB:**** ____/____/____

Additional Driver(s) (if allowed):

• **Name:** _____ ****License #:**** _____ ****State:**** _____
****DOB:**** ____/____/____

• **Additional Driver Fee:** \$_____

Age Requirement: Minimum age to drive this vehicle: ☐ 21 ☐ 25 ☐ Other: _____

UNAUTHORIZED DRIVERS: Only drivers listed above are authorized to operate the vehicle. If an unauthorized person drives the vehicle, insurance coverage may be void and Renter will be fully liable for all damages.

9. PROHIBITED USES

Renter agrees NOT to use the vehicle for/in the following conditions (violation may void insurance and result in full Renter liability):

- ☐ Driving under the influence of alcohol or drugs
- ☐ Any illegal activity
- ☐ Racing, speed contests, or performance testing
- ☐ Off-road driving or unpaved roads
- ☐ Towing or pushing any object
- ☐ Smoking or vaping inside the vehicle (Cleaning fee: \$_____)
- ☐ Transporting animals (unless written agreement: ☐ Allowed with fee of \$_____)

- ☐ Subleasing the vehicle
- ☐ Use for rideshare services (Uber, Lyft) without explicit agreement
- ☐ Carrying more passengers than available seatbelts
- ☐ Leaving the United States (unless written agreement)
- ☐ Transporting illegal substances or contraband
- ☐ Using vehicle for commercial purposes without written agreement

10. FUEL POLICY

- **Fuel Level at Pickup:** ☐ Full ☐ 3/4 ☐ 1/2 ☐ 1/4

Fuel Policy:

- ☐ **Full-to-Full:** Renter must return vehicle with same fuel level as pickup. If not, Owner will charge **\$_____** per gallon plus **\$_____** refueling fee.
- ☐ **Prepaid Fuel:** Renter has prepaid for a full tank at **\$_____** per gallon. No refund for unused fuel.
- ☐ **Other:** _____

11. VEHICLE CONDITION AND MAINTENANCE

Renter's Responsibilities:

1. Return vehicle in same condition as received (normal wear and tear excepted)
2. Keep vehicle clean and free of trash
3. Report any damage, mechanical issues, or warning lights immediately to Owner
4. Not make any modifications or alterations to the vehicle
5. Lock vehicle when unattended
6. Use appropriate fuel grade as specified

Owner's Responsibilities:

1. Provide vehicle in safe, clean, and working condition
2. Ensure valid registration and insurance

3. Disclose any known mechanical issues or defects
4. Provide roadside assistance contact information (if applicable)

12. LATE RETURN AND CLEANING FEES

Late Return:

- **Grace Period:** _____ minutes (no charge)
- **Late Fee:** **\$_____** per hour (or **\$_____** per day)
- If Renter will be late, Renter must contact Owner immediately to request extension.

Cleaning Fees:

- Normal cleaning: Included in rental
- Excessive dirt or stains: \$_____
- Smoking odor removal: \$_____
- Pet hair removal: \$_____

Damage Fees:

- Minor scratches/dents: Actual repair cost (up to \$_____)
- Major damage: Insurance deductible or actual repair cost
- Lost key: \$_____ replacement fee

13. ACCIDENTS, BREAKDOWNS, AND EMERGENCIES

In Case of Accident:

1. Ensure safety of all parties involved
2. Call 911 if there are injuries or major damage
3. Contact Owner IMMEDIATELY at: _____
4. Exchange information with other party (name, phone, insurance, license plate)
5. Take photos of accident scene, damage, and other vehicle(s)
6. File police report if required by law or if damage exceeds \$_____
7. Do NOT admit fault or liability

8. Complete accident report and submit to Owner within 24 hours

In Case of Breakdown:

1. Move vehicle to safe location if possible
2. Contact Owner IMMEDIATELY at: _____
3. Do NOT authorize repairs without Owner's approval (except emergency repairs under \$_____)
4. Owner will arrange towing and repairs if needed

Roadside Assistance:

- ☐ Included: Contact _____ at _____
- ☐ Not included: Renter responsible for arranging and paying for roadside assistance

14. CANCELLATION POLICY

Cancellation by Renter:

- More than _____ hours before pickup: ☐ Full refund ☐ _____% refund
- Less than _____ hours before pickup: ☐ No refund ☐ _____% refund
- Cancellation fee: \$_____

Cancellation by Owner:

Owner may cancel this agreement if:

1. Renter provides false information
2. Renter's driver's license is invalid or suspended
3. Vehicle becomes unavailable due to mechanical failure or accident
4. Other: _____

If Owner cancels, Renter will receive a full refund.

15. INDEMNIFICATION AND LIABILITY

Renter's Indemnification:

Renter agrees to indemnify, defend, and hold harmless Owner from any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorney fees) arising

from:

1. Renter's use of vehicle
2. Violation of this agreement
3. Violation of any law
4. Injury or property damage to third parties
5. Failure to maintain insurance

Limitation of Liability:

- Owner's total liability under this agreement shall not exceed the total rental amount paid by Renter.
- Renter's total liability under this agreement shall not exceed the insurance coverage limits or \$_____, whichever is greater.

Vicarious Liability Exemption:

Owner and any applicable P2P platform are exempt from vicarious liability in accordance with 49 U.S.C. § 30106 and under any state or local law that imposes liability solely based on vehicle ownership.

16. GOVERNING LAW AND STATE-SPECIFIC ADDENDUM

- **Governing Law:** This agreement is governed by the laws of the State of:

** _____ **

- **Jurisdiction:** Any disputes arising from this agreement shall be resolved in the courts of _____ County, State of _____.

■ **Binding Arbitration:** The parties agree to submit any disputes to binding arbitration under the rules of the American Arbitration Association before pursuing litigation.

STATE-SPECIFIC ADDENDUM (Check boxes applicable to the state above)

- ■ **Car Sharing Taxes:** Renter agrees to pay applicable car sharing taxes in this state.
- ■ **Safety Inspection:** Owner confirms vehicle has passed any safety inspection required by the state (e.g., Maryland for vehicles 10+ years old).
- ■ **Business License:** Owner confirms holding any business license required for vehicle rental in this jurisdiction.
- ■ **Minimum Insurance Requirements:** Coverage meets or exceeds state minimum requirements of: Bodily Injury **\$_____**, Property Damage **\$_____**, PIP

****\$_____**** (if applicable), UM/UIM ****\$_____**** (if applicable).

• **■ Other State-Specific Requirement:**

17. RECORDKEEPING (For P2P Platforms or Owner)

If this rental is facilitated through a P2P platform, or if Owner is conducting multiple rentals, the following records shall be maintained:

- Times of vehicle use
- Pickup and drop-off locations
- Fees paid by Renter
- Revenues received by Owner
- Driver's license verification records

Records shall be retained for a period not less than the applicable personal injury statute of limitations in the governing state.

18. GENERAL PROVISIONS

Entire Agreement: This agreement constitutes the entire agreement between Owner and Renter. No oral modifications or amendments are valid. Any changes must be made in writing and signed by both parties.

Severability: If any provision of this agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

Waiver: Failure by either party to enforce any provision of this agreement shall not constitute a waiver of that provision or any other provision.

19. ACKNOWLEDGMENTS

RENTER ACKNOWLEDGES:

- **■** I have read and understood all terms of this agreement
- **■** I have received the vehicle in the condition described above
- **■** I have a valid driver's license and understand my insurance obligations

- ■ I am at least _____ years old
- ■ I agree to return the vehicle on time and in the same condition
- ■ I understand I am liable for all damage, violations, and fees during the rental period
- ■ I have taken photos of the vehicle before pickup
- ■ I understand that my personal auto insurance may not cover this rental

OWNER ACKNOWLEDGES:

- ■ I have provided the vehicle in safe, working condition
- ■ I have disclosed all known defects or issues
- ■ I have valid registration and insurance for this vehicle
- ■ I have taken photos of the vehicle before rental
- ■ I have verified Renter's driver's license
- ■ I have verified there are no unrepaired safety recalls on this vehicle

20. SIGNATURES

By signing below, both parties acknowledge having read, understood, and agreed to all terms and conditions of this agreement, including consumer protection disclosures and legal disclaimers.

OWNER:

Signature: _____ Date: ____/____/____

Printed Name: _____

RENTER:

Signature: _____ Date: ____/____/____

Printed Name: _____

WITNESS (optional but recommended):

Signature: _____ Date: ____/____/____

Printed Name: _____

21. VEHICLE RETURN CHECKLIST

Vehicle Condition at Return:

- **Odometer Reading:** _____ miles
- **Fuel Level:** ☐ Full ☐ 3/4 ☐ 1/2 ☐ 1/4 ☐ Empty
- **Exterior Condition:** ☐ Excellent ☐ Good ☐ Fair ☐ Damaged
- **Interior Condition:** ☐ Excellent ☐ Good ☐ Fair ☐ Dirty
- ☐ Photos taken at return

New Damage (if any):

Deductions from Security Deposit:

- Cleaning Fee: \$_____
- Damage Repair: \$_____
- Late Fee: \$_____
- Mileage Overage: \$_____
- Other: _____ \$_____

TOTAL DEDUCTIONS: **\$_____****DEPOSIT REFUND AMOUNT:** **\$_____****Owner Signature (at return):** _____**Renter Signature (at return):** _____

Date: ____/____/____

END OF AGREEMENT**APPENDIX: STATE-SPECIFIC REQUIREMENTS**

NOTE: This is a generic template incorporating federal best practices and the NCOIL Model Act recommendations. Some states have additional requirements for peer-to-peer car sharing. Please consult the following resources or a local attorney:

States with P2P Car Sharing Laws (as of 2025):

Alaska, Arizona, California, Colorado, Connecticut, Delaware, Florida, Georgia, Hawaii, Illinois, Indiana, Kansas, Kentucky, Louisiana, Maine, Maryland, Michigan, Nevada, New York, Ohio, Oklahoma, Oregon, Pennsylvania, Rhode Island, Tennessee, Texas, Virginia, Washington, West Virginia

Common State-Specific Requirements:

- **Insurance:** Minimum coverage amounts vary by state
- **Taxes:** Some states require collection of car sharing taxes
- **Safety:** Some states require vehicle inspections (e.g., Maryland for vehicles 10+ years old)
- **Licensing:** Some jurisdictions require business licenses for owners with multiple vehicles

Key Resources:

- NCOIL Peer-to-Peer Car Sharing Program Model Act (2021)
- Your State's Department of Motor Vehicles (DMV)
- Your State's Insurance Commissioner
- Federal Trade Commission Consumer Alerts

Disclaimer: This template is provided for informational purposes only and does not constitute legal advice. Users are responsible for ensuring compliance with all applicable federal, state, and local laws.

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Based on: NCOIL Model Act, State Statutes, and Consumer Protection Best Practices